

TENTATIVE RULINGS for LAW and MOTION

June 4, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen

(530) 406-6777

Telephone number for the clerk in Department Fourteen

(530) 406-6800

TENTATIVE RULING

Case: **Baker v. Yolo County**
Case No. CV2025-0917

Hearing Date: **June 4, 2026** **Department Thirteen** **9:00 a.m.**

Motion for judgment:

Real parties in interest Zipline International Inc. and Yolo Land and Cattle Company's request for judicial notice (filed May 28, 2026) is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court's determination of the motion. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 ["Any matter to be judicially noticed must be relevant to a material issue"].)

Real parties in interest's motion for judgment is **GRANTED**. (Code Civ. Proc., § 1094.) Petitioner Mark Baker failed to exhaust his administrative remedies before filing the first amended petition, which challenges the October 9, 2025, decision. (*McCann v. City of San Diego* (2021) 70 Cal.App.5th 51, 76-77; Yolo County Code, § 8-2.225; see also Pub. Resources Code, § 21177; Pinkston decl., ¶¶ 5-7, Exhibit C; FAP, ¶¶ 1, 14, 24-27, & 34-35.) Therefore, the Court finds that petitioner cannot proceed with this action. (See *Tahoe Vista Concerned Citizens v. County of Placer* (2000) 81 Cal.App.4th 577, 589 [stating "the requirement of exhaustion is a jurisdictional prerequisite, not a matter of judicial discretion"].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to augment the record:

As the Court is granting real parties in interest's motion for judgment, petitioner Mark Baker's motion to augment administrative record is **DENIED AS MOOT**. (Pub. Resources Code, § 21167.6.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

Given the Court's ruling on real parties in interest's motion for judgment, the case management conference is **VACATED**.

TENTATIVE RULING

Case: **Sarkis v. Yolo County Public Agency Risk Management Insurance Authority et al.**

Case No. CV2024-2614

Hearing Date: **June 4, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, plaintiff Armond Sarkis' motion to strike defendants Yolo County Public Agency Risk Management Insurance Authority and Jill Renee Perez's memorandum of costs as premature, or, in the alternative, to tax costs is **CONTINUED** to **July 28, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: **Vallejos v. City of West Sacramento**
Case No. CV2026-0372

Hearing Date: **June 4, 2026** **Department Fourteen** **9:00 a.m.**

Defendant David Alison Walker’s motion to strike the first amended complaint, prayer, and claims for punitive damage is **DENIED**. (Code Civ. Proc., §§ 435, 436; Civ. Code, § 3294.) Plaintiffs allege sufficient facts to show that defendant acted with “a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1); *Taylor v. Superior Court* (1979) 24 Cal.3rd 890, 895-896.) Specifically, plaintiffs allege facts demonstrating that “defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Hoch v. Allied-Signal, Inc.* (1994) 24 Cal.App.4th 48, 61, quotation marks omitted; FAC, p. 5, ¶ EX-2.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.